THE MARINE ENVIRONMENT PROTECTION COMMITTEE RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environme nt Protection Committee conferred upon it by international conventions for the preventio n and control of marine pollution from ships, RECALLING ALSO article 16 of the Internati onal Convention for the Prevention of Pollution from Ships, 1973, as modified by the Pro tocols of 1978 and 1997 relating thereto (MARPOL), which specifies the amendment procedu re and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties, - which specifies the amendment procedur e and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties, RECALLING FURTHER regulation 13 of MARPO L Annex VI, which makes the Technical Code on Control of Emission of Nitrogen Oxides fro m Marine Diesel Engines (hereafter "NO x Technical Code 2008") mandatory under that Anne x, HAVING CONSIDERED, at its eighty -third session, draft amendments to the NOx Technica l Code 2008 concerning the use of multiple engine operational profiles for a marine dies el engine, including clarifying engine test cycles, as appropriate, approved at its eigh ty-second session and duly circulated in accordance with article 16(2)(a) of MARPOL, 1 A DOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to the NO x Technical C ode 2008, the text of which is set out in the annex to the present resolution; 2 DETERMI NES, in accordance with articles 16(2)(f)(ii) and (iii) of MARPOL, that the amendments s hall be deemed to have been accepted on 1 September 2026 unless prior to that date not l ess than one third of the Parties or Parties the combined merchant fleets of which - ame ndments shall be deemed to have been accepted on 1 September 2026 unless prior to that d ate not less than one third of the Parties or Parties the combined merchant fleets of wh ich constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments; 3 INVITES the Partie s to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments s hall enter into force on 1 March 2027 upon their acceptance in accordance with paragraph 2 above; 4 ALSO INVITES the Parties to note that the said amendments shall enter into ef fect as follows: (a) for a new individual engine or a parent engine of an engine family or engine group that has not been previously certified, the said amendments apply no lat er than 1 January 2028, based on the issue date of